
MUTUAL NON-DISCLOSURE AGREEMENT

Healthcare Technology Evaluation — HIPAA/HITECH Overlay

BETWEEN

Novagen Diagnostics Corporation 225 Binney Street, Cambridge, Massachusetts 02142 | EIN 04-3456789
Pinnacle Health Network LLC One Market Plaza, Boston, Massachusetts 02109 | EIN 26-7890123

— and —

NovaTech Solutions Inc. 450 Serra Mall, Palo Alto, California 94305 | Delaware Corporation

Reference: **NDC-PHN-NDA-2025-001**

Date: **2 April 2025**

Governing Law: **Commonwealth of Massachusetts, United States**

Confidentiality Level: **CONFIDENTIAL — HIPAA / HITECH REGULATED INFORMATION**

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1. DEFINITIONS

1.1 In this Agreement:

"Agreement" means this Mutual Non-Disclosure Agreement;

"BAA" or **"Business Associate Agreement"** means a business associate agreement satisfying the requirements of 45 C.F.R. 164.502(e) and 164.504(e), to be negotiated and attached as Exhibit B;

"Confidential Information" has the meaning in Section 2;

"Covered Entity" has the meaning in 45 C.F.R. 160.103;

"Effective Date" means 2 April 2025;

"HIPAA" means the Health Insurance Portability and Accountability Act of 1996, as amended by the Health Information Technology for Economic and Clinical Health Act (HITECH Act), and all regulations promulgated thereunder, including the Privacy Rule (45 C.F.R. Parts 160 and 164) and the Security Rule (45 C.F.R. Parts 160 and 164);

"HITECH" means the Health Information Technology for Economic and Clinical Health Act, Pub. L. 111-5, Division A, Title XIII, and Division B, Title IV;

"OCR" means the U.S. Department of Health and Human Services, Office for Civil Rights;

"PHI" or **"Protected Health Information"** has the meaning in 45 C.F.R. 160.103, and includes electronic PHI (ePHI);

"Purpose" means the evaluation of a potential AI-assisted clinical diagnostic decision support platform arrangement between the parties;

"Safe Harbor De-identification" means the method of de-identification described in 45 C.F.R. 164.514(b)(2);

2. CONFIDENTIAL INFORMATION — HIPAA OVERLAY

2.1 **"Confidential Information"** means all non-public information disclosed by any party to another in connection with the Purpose, including: (a) proprietary diagnostic algorithms, clinical AI models, machine learning training data, assay protocols, and technical documentation; (b) patient cohort data, aggregate clinical datasets, and research cohort data, **whether or not de-identified within the meaning of 45 C.F.R. 164.514 (Safe Harbor De-identification)**; (c) any data derived from clinical operations that **could reasonably identify a patient** at any level of data aggregation, statistical combination, or re-identification analysis; and (d) operational, financial, and strategic information of each party.

2.2 **De-identified Data — Express Inclusion.** The parties expressly agree that data that has undergone Safe Harbor De-identification pursuant to 45 C.F.R. 164.514 shall nonetheless constitute Confidential Information hereunder and shall be subject to the full obligations of this Agreement. The parties acknowledge that this provision is broader than HIPAA requires and represents their commercial agreement.

2.3 **Exclusions Override.** Standard exclusions apply. **No exclusion shall apply to patient data, clinical records, or research cohort data, regardless of de-identification status, public availability, prior knowledge, or independent development.**

3. OBLIGATIONS — HIPAA STANDARD OF CARE

3.1 Each Receiving Party shall use **reasonable efforts** to maintain the confidentiality and security of PHI and other Confidential Information and shall implement reasonable administrative, physical, and technical

safeguards consistent with HIPAA Security Rule requirements (45 C.F.R. Parts 160 and 164).

3.2 Access restricted to employees and contractors with a need to know, bound by written confidentiality obligations.

4. TERM

4.1 Five (5) years from the Effective Date. **HIPAA obligations survive termination indefinitely** to the extent required by applicable law, including the HIPAA record retention requirements of 45 C.F.R. 164.530(j). The parties acknowledge that the indefinite survival of HIPAA obligations is mandated by federal law.

5. HIPAA BUSINESS ASSOCIATE OBLIGATIONS

5.1 To the extent any party acts as a Business Associate of another party, the parties agree to execute a BAA satisfying 45 C.F.R. 164.502(e) and 164.504(e).

5.2 **Exhibit B Not Attached.** The parties acknowledge that the BAA required by this Section 5 has **not been attached** as Exhibit B as of the Effective Date. **Until Exhibit B is executed and attached, no PHI shall be disclosed between the parties under this Agreement.** The undefined scope of HIPAA obligations creates potential OCR enforcement exposure, and the parties agree to negotiate and execute the BAA as a priority.

5.3 HIPAA obligations described in this Section 5 survive termination indefinitely.

6. RETURN OR DESTRUCTION — HIPAA STANDARDS

6.1 Thirty (30) days from request or termination. Destruction of any PHI-containing materials shall be accomplished in a **HIPAA-compliant manner** rendering PHI unreadable and indecipherable, consistent with NIST SP 800-88 and OCR guidance on media sanitisation.

7. COMPELLED DISCLOSURE — QUALIFIED PROTECTIVE ORDER

7.1 Any disclosure required by law is permitted subject to prior written notice. **Disclosure of patient data pursuant to a court order requires a HIPAA-compliant Qualified Protective Order (QPO) under 45 C.F.R. 164.512(e)(1)(v) before such disclosure is made. The Receiving Party bears the cost of obtaining any QPO.**

8. BREACH NOTIFICATION — FOUR-HOUR REQUIREMENT

8.1 **Each Receiving Party shall notify all other parties of any suspected or actual breach of this Agreement, or any security incident (as defined in 45 C.F.R. 164.304) affecting Confidential Information (including PHI), within four (4) hours of discovery, by telephone, and confirmed in writing within twenty-four (24) hours of discovery.**

8.2 The parties acknowledge that the four-hour notification requirement in Section 8.1 is a contractual obligation between the parties and is separate from, and in addition to, the notification obligations under the HIPAA Breach Notification Rule (45 C.F.R. 164.400-414), which requires notification to affected individuals within 60 days and to HHS OCR within 60 days of discovery. The contractual four-hour requirement does not modify the parties' federal regulatory notification obligations.

9. REMEDIES

9.1 Each party entitled to seek injunctive relief and other equitable remedies. Breach of PHI obligations may be reported to OCR independently of contractual remedies.

15. NOTICES

15.1 Any notice, demand, request, or other communication required or permitted to be given under or in connection with this Agreement shall be in writing and shall be delivered: (i) by hand; (ii) by internationally recognised overnight courier service; (iii) by registered or certified mail, return receipt requested, postage prepaid; or (iv) by electronic mail with confirmation of receipt and a hard copy sent by one of the foregoing methods within two (2) business days of transmission.

15.2 Notices shall be addressed as follows:

If to Novagen Diagnostics Corporation / Pinnacle Health Network LLC:

225 Binney Street, Cambridge, Massachusetts 02142 / One Market Plaza, Boston, Massachusetts 02109

Attention: Chief Compliance Officer — Healthcare Operations

If to NovaTech Solutions Inc.:

450 Serra Mall, Palo Alto, California 94305, United States

Attention: General Counsel, NovaTech Solutions Inc.

15.3 Notices shall be deemed to have been duly given: (a) upon delivery, if delivered by hand; (b) on the next business day after despatch, if sent by overnight courier; (c) on the fifth (5th) business day after posting, if sent by registered mail; or (d) upon electronic confirmation of receipt, if sent by email, provided that the hard copy is despatched within two (2) business days thereafter. Either party may change its notice address by giving written notice to the other party in accordance with this Section 15.

16. ASSIGNMENT

16.1 Neither party may assign, transfer, delegate, or otherwise dispose of any of its rights or obligations under this Agreement, whether by operation of law or otherwise, without the prior written consent of the other party, such consent not to be unreasonably withheld, conditioned, or delayed. Any purported assignment in violation of this Section 16 shall be null and void and of no force or effect.

16.2 Notwithstanding Section 16.1, either party may, without the consent of the other party, assign its rights and obligations under this Agreement to: (a) an affiliate of the assigning party; or (b) a successor entity in connection with a merger, acquisition, reorganisation, or sale of all or substantially all of the assigning party's assets or business to which this Agreement relates, provided that: (i) the assignee assumes in writing all of the assigning party's obligations under this Agreement; (ii) the assigning party provides the other party with prompt written notice of such assignment; and (iii) the assignment does not result in a reduction of the protections afforded to the other party under this Agreement.

17. ENTIRE AGREEMENT

17.1 This Agreement, together with any schedules and exhibits attached hereto and incorporated herein by reference, constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior and contemporaneous negotiations, representations, warranties, understandings, letters of intent, term sheets, and agreements, whether oral or written, relating to such subject matter. Each party acknowledges that it has not relied on any representation, warranty, or undertaking that is not set out in this Agreement.

17.2 The parties agree that the recitals set out at the beginning of this Agreement form part of this Agreement and are incorporated herein by reference.

18. AMENDMENTS

18.1 No modification, amendment, or waiver of any provision of this Agreement shall be effective unless made in writing and duly executed by authorised representatives of both parties. No oral amendment or modification of this Agreement shall be binding on either party regardless of any course of dealing or course of performance between the parties.

19. SEVERABILITY

19.1 If any provision of this Agreement is held by a court or tribunal of competent jurisdiction to be invalid, illegal, void, or unenforceable under applicable law, such provision shall be modified to the minimum extent necessary to make it valid, legal, and enforceable, and the validity, legality, and enforceability of the remaining provisions of this Agreement shall not in any way be affected or impaired thereby, provided that the economic and legal substance of the transactions contemplated by this Agreement is not affected in any manner materially adverse to either party.

19.2 If any provision of this Agreement is held to be invalid or unenforceable as written but would be valid or enforceable if modified, such provision shall apply with the modification necessary to make it valid and enforceable under applicable law, and the parties agree to negotiate in good faith a replacement provision that, to the greatest extent possible, achieves the original intent and economic effect of the invalid or unenforceable provision.

20. WAIVER

20.1 No failure or delay by either party in exercising any right, power, or privilege under this Agreement shall operate as a waiver thereof, nor shall any single or partial exercise of any right, power, or privilege preclude any other or further exercise thereof or the exercise of any other right, power, or privilege. No waiver of any provision of this Agreement shall be effective unless made in writing and signed by a duly authorised representative of the waiving party.

20.2 The rights and remedies provided in this Agreement are cumulative and not exclusive of any other rights or remedies that a party may have at law or in equity.

21. NO PARTNERSHIP, AGENCY, OR JOINT VENTURE

21.1 Nothing in this Agreement shall be construed to create a partnership, joint venture, employment relationship, or agency relationship between the parties. Neither party shall have any right, power, or authority to bind or obligate the other party in any manner or make any representation on behalf of the other party without the prior written consent of such other party. Each party shall remain an independent contractor in relation to the other party.

22. COUNTERPARTS AND ELECTRONIC SIGNATURES

22.1 This Agreement may be executed in one or more counterparts, each of which shall be deemed an original and all of which, taken together, shall constitute one and the same instrument. Delivery of an executed counterpart of a signature page by electronic transmission (including PDF, DocuSign, or similar electronic signature platform) shall be equally effective as delivery of a manually executed counterpart. A party that delivers a counterpart by electronic transmission shall promptly thereafter deliver a manually executed counterpart to the other party, but failure to do so shall not affect the validity or enforceability of

this Agreement.

22.2 Electronic signatures applied through a recognised electronic signature platform (including DocuSign, Adobe Sign, or equivalent) shall constitute valid and binding signatures for the purposes of this Agreement and shall have the same legal effect as handwritten signatures to the fullest extent permitted by applicable law, including the Electronic Signatures in Global and National Commerce Act (E-SIGN Act), the Uniform Electronic Transactions Act (UETA), and any applicable foreign equivalent.

23. FORCE MAJEURE

23.1 Neither party shall be in breach of this Agreement or liable to the other party for any delay in performing, or failure to perform, any of its obligations under this Agreement (other than payment obligations) if and to the extent that such delay or failure results from events, circumstances, or causes beyond its reasonable control, including acts of God, pandemic, epidemic, war, terrorism, civil disturbance, government action, regulatory change, or failure of third-party telecommunications or internet infrastructure (a "Force Majeure Event"). In such circumstances, the affected party shall: (a) notify the other party in writing promptly upon becoming aware of the Force Majeure Event; (b) use all reasonable endeavours to mitigate the effect of the Force Majeure Event; and (c) resume performance as soon as reasonably practicable after the cessation of the Force Majeure Event.

23.2 If a Force Majeure Event continues for a period in excess of sixty (60) consecutive days, either party may terminate this Agreement on ten (10) days' written notice to the other party, without liability to either party for such termination.

24. GOVERNING LAW AND DISPUTE RESOLUTION

24.1 **Governing Law.** This Agreement and any dispute, controversy, or claim arising out of or in connection with it or its subject matter, formation, existence, negotiation, validity, termination, or enforceability (including non-contractual disputes or claims) shall be governed by and construed in accordance with the laws of **Commonwealth of Massachusetts, United States**, without regard to its conflict of laws principles.

24.2 **Jurisdiction.** Each party irrevocably agrees that the courts of **the courts of the Commonwealth of Massachusetts (Suffolk County) and the federal courts of the District of Massachusetts** shall have exclusive jurisdiction to settle any dispute or claim arising out of or in connection with this Agreement or its subject matter or formation. Each party irrevocably waives any objection to the courts of the courts of the Commonwealth of Massachusetts (Suffolk County) and the federal courts of the District of Massachusetts on the grounds of inconvenient forum or any other grounds.

24.3 **Injunctive Relief.** Notwithstanding the foregoing, either party may seek urgent interlocutory or interim injunctive relief from any court of competent jurisdiction without waiving its right to invoke the dispute resolution procedure set out in this Section 24.

IN WITNESS WHEREOF

EXECUTED as a legally binding agreement on the date first written above.

SIGNED for and on behalf of

SIGNED for and on behalf of

**Novagen Diagnostics Corporation Pinnacle Health
Network LLC**

Signature: _____

Print Name: [NAME]

Title: Chief Compliance Officer

Date: _____

Witness Name: _____

Witness Sig.: _____

NovaTech Solutions Inc.

Signature: _____

Print Name: [NAME]

Title: General Counsel

Date: _____

Witness Name: _____

Witness Sig.: _____